

CUSTOMER SERVICE / CLAIM QUESTIONS, CALL US AT (385)505-4256	MARINE MAINTENANCE PLAN NEW CLIENT ENROLLMENT FORM	
<u>AGREEMENT NUMBER</u>		
<u>AGREEMENT DATE:</u>		

MAINTENANCE PLAN HOLDER INFORMATION			
FIRST NAME:	LAST NAME:	M.I.	
MAILING ADDRESS:		EMAIL ADDRESS:	
CITY:	STATE:	ZIP:	PHONE #:

LIENHOLDER INFORMATION			
LIEN HOLDER:			
MAILING ADDRESS:			
CITY:	STATE:	ZIP:	PHONE #:

SELLING DEALERSHIP INFORMATION			
SELLING DEALERSHIP NAME:			
MAILING ADDRESS:			
CITY:	STATE:	ZIP:	PHONE #:

VESSEL INFORMATION					
HIN:	YEAR:	MAKE:	MODEL:	NEW: ☐	Used: ☐
ENGINE 1: SERIAL #	YEAR:	MAKE:	MODEL:	ENGINE HOURS:	
ENGINE 2: SERIAL #	YEAR:	MAKE:	MODEL:	ENGINE HOURS:	

MAINTENANCE COVERAGE SELECTION		
12 MONTH ☐	TERM SELECTION 24 MONTH ☐	36 MONTH ☐
AGREEMENT PURCHASE PRICE: _____		AGREEMENT PURCHASE DATE: _____

SERVICE STRUCTURE									
The Selling Dealer listed above will perform the following Maintenance Benefits to Your Vessel during the term of this Maintenance Agreement based on the program and term selected by You in SECTION 5 - MAINTENANCE COVERAGE SELECTION. Covered Services are provided based on manufacturer-recommended intervals and engine hour usage during the Agreement term. The number of services performed may vary depending on usage and does not guarantee a fixed number of service events.									
DE-WINTERIZATION	IMPELLER SERVICE	ENGINE OIL SERVICE	FUEL FILTER SERVICE	TRANSMISSION OIL SERVICE	OUTDRIVE SERVICE	SHAFT ALIGNMENT	WINTERIZATION	V-DRIVE SERVICE	BALLAST CARTRIDGE SERVICE
YEARLY N/A	BEGINNING OF SEASON EVERY 50 HOURS	YEARLY EVERY 50 HOURS	N/A EVERY 150 HOURS	YEARLY EVERY 100 HOURS	YEARLY EVERY 150 HOURS	YEARLY EVERY 150 HOURS	YEARLY N/A	YEARLY EVERY 200 HOURS	N/A EVERY 100 HOURS

MAINTENANCE PLAN HOLDER ACKNOWLEDGEMENT

1. YOU ARE NOT REQUIRED TO ENTER INTO THIS MAINTENANCE AGREEMENT IN ORDER TO PURCHASE, LEASE, OR OBTAIN FINANCING FOR THIS VESSEL
2. This Maintenance Agreement contains two documents: this Enrollment Form and a coverage document which contains all the additional terms, conditions, and exclusions governing this Maintenance Agreement. This Enrollment form and the coverage together complete the Maintenance Agreement. You should read this entire Maintenance Agreement carefully. It contains the entire agreement between You and Us. It takes precedence over any other written or oral statements made to You with respect to this Maintenance Agreement. Any modification(s) or change(s) to the preprinted terms and conditions of this Maintenance Agreement is/are invalid and of no force or effect.
3. This Maintenance Agreement is between You and the obligor (We, Us, Our) as defined in Section 1. DEFINITIONS
4. Provisions concerning Your responsibilities are listed in Section 8. OWNERS OBLIGATIONS
5. This Maintenance Agreement is not a policy of insurance issued to You. It is a service contract / prepaid maintenance agreement. However, the obligations of the Provider under this Maintenance Agreement are insured under a service contract reimbursement insurance policy issued by Kinsale Insurance Company (the "Insurance Company"). P.O. Box 17008 Richmond, VA 23226. If a covered claim is not paid within sixty (60) days after proof of loss has been filed, You may file a claim directly with the Insurance Company. Please call (804)289-1300 for instructions.
6. By Your signature below, You hereby acknowledge that You have been given the opportunity to read the entire Maintenance Agreement and that any dispute arising out of or relating to this Maintenance Agreement or the breach thereof, shall be resolved by binding arbitration.

SIGNATURES	
MAINTENANCE PLAN HOLDER SIGNATURE: _____	DATE: _____
DEALER AUTHORIZED SIGNATURE: _____	DATE: _____

CALIFORNIA CUSTOMERS: YOU MUST BE PROVIDED A COPY OF THE OWNER'S MANUAL AT TIME OF PURCHASE

WHITESTONE PARTNERS - MARINE MAINTENANCE PLAN AGREEMENT

This Marine Maintenance Plan Agreement ("Agreement") is entered into as of the Effective Date identified in the applicable Enrollment Form by and among Whitestone Partners, LLC ("Provider," "Obligor," "We," "Us," or "Our"), the authorized participating dealer identified in the Enrollment Form ("Dealer"), and the purchaser identified therein ("Owner," "You," or "Your"). This Agreement, together with the Enrollment Form and any applicable state addenda or disclosures, constitutes the entire agreement between the parties.

DEFINITIONS

For purposes of this Agreement, the following terms shall apply: "Covered Vessel" means the watercraft identified in the Enrollment Form; "Covered Services" means only those maintenance services expressly described in Section 4 of this Agreement; "Effective Date" means the date of Plan purchase shown on the Enrollment Form; "Engine Hours" means verifiable engine runtime or usage data; "Enrollment Form" means the executed purchase document associated with this Agreement; and "Plan" means this prepaid marine maintenance program.

PLAN NATURE AND REGULATORY CLASSIFICATION

This Plan is a prepaid maintenance program and service contract providing routine maintenance services only. This Agreement is not a policy of insurance issued to You. However, where required by applicable law, Provider's obligations under this Agreement are insured under a service contract reimbursement insurance policy. This Agreement shall be interpreted, administered, and enforced in accordance with the laws and regulatory requirements of the state in which it is sold, including any laws governing service contracts, maintenance agreements, or similar regulated products. Provider shall maintain any registration, licensing, reimbursement insurance, reserve requirements, or other financial security obligations required by applicable law.

This Agreement does not provide coverage for mechanical breakdown, component failure, or repair liability except to the extent such coverage is required by applicable law.

TERM OF COVERAGE

Coverage begins on the Effective Date and continues for the term selected in the Enrollment Form, which may include one (1), two (2), or three (3) year options. Coverage automatically expires at the conclusion of the applicable term unless otherwise required by law. Any unused services remaining at expiration shall terminate without value except as otherwise provided under the Cancellation and Refund Policy or applicable state law.

COVERED SERVICES

Subject to the terms, conditions, limitations, and exclusions contained in this Agreement, Provider agrees to pay for parts and labor associated with the following Covered Services performed on the Covered Vessel:

- Annual De-Winterization
- Seasonal Impeller Service and every 50 Engine Hours
- Annual Engine Oil Service and every 50 Engine Hours
- Fuel Filter Service every 150 Engine Hours
- Annual Transmission Oil Service and every 100 Engine Hours
- Annual Outdrive Service and every 100 Engine Hours
- Annual Shaft Alignment and every 150 Engine Hours
- Annual Winterization
- Annual V-Drive Service and every 200 Engine Hours
- Ballast Cartridge Service every 100 Engine Hours

Covered Services shall be performed in accordance with manufacturer recommendations, commercially reasonable industry standards, and applicable service intervals. Provider retains the right to determine the timing, applicability, frequency, and eligibility of Covered Services based upon documented Engine Hours, service history, manufacturer guidelines, inspection findings, and operational usage of the Covered Vessel. Such determinations shall be made in good faith and in a commercially reasonable manner consistent with industry standards.

Covered Services are limited to the intervals and occurrence limitations described above or the maximum number of services reasonably contemplated during the applicable term, whichever occurs first. This Agreement does not provide unlimited maintenance services.

ADMINISTRATION, SERVICE PROCEDURES, AND AUTHORIZATION

All Covered Services must be authorized by Provider and performed by an authorized Dealer or service facility approved by Provider. Dealers participating in the program are independent contractors and are not agents, partners, joint venturers, or employees of Provider. Provider administers the Plan, authorizes Covered Services, and pays for eligible maintenance services performed pursuant to this Agreement.

Routine maintenance services performed within applicable intervals may not require separate pre-authorization where otherwise permitted by Provider procedures; however, Provider reserves the right to require verification, inspection, supporting documentation, or approval prior to payment of any claim or service request. Failure by a Dealer or service facility to follow required authorization procedures may result in denial of payment to the Dealer; however, Owner shall not be responsible for a Dealer's failure to comply with Provider administrative requirements where services were otherwise eligible under this Agreement.

Scheduling of services is subject to Dealer and service facility availability. Transportation charges, storage fees, hauling expenses, convenience charges, environmental fees, shop supplies, and similar incidental expenses are not covered unless expressly authorized in writing by Provider.

Provider reserves the right to establish, modify, and standardize claims handling procedures, service protocols, documentation requirements, authorized repair networks, and administrative processes on a prospective basis, provided such changes do not materially reduce the Covered Services purchased under this Agreement.

OWNER RESPONSIBILITIES

You are responsible for properly operating and maintaining the Covered Vessel in accordance with manufacturer recommendations and reasonable industry practices. You agree to maintain accurate Engine Hour readings and provide reasonable verification of Engine Hours upon request. Engine Hour verification may include onboard engine systems, diagnostic records, dealer service records, inspection reports, or other commercially reasonable methods.

If Engine Hour data is unavailable, inaccurate, altered, or disputed, Provider may reasonably estimate usage and applicable maintenance intervals based upon available information, inspection findings, historical usage patterns, and industry standards. Any such determination shall be made in good faith and in a commercially reasonable manner.

Fraud, material misrepresentation, intentional tampering, or misuse of the Covered Vessel may result in denial of coverage, cancellation of this Agreement, or other remedies permitted by applicable law.

EXCLUSIONS

This Agreement provides coverage only for the specific routine maintenance services expressly listed in Section 4. Except where prohibited by law, this Agreement does not provide coverage for mechanical breakdowns, repairs, defective components, cosmetic repairs, aftermarket modifications, diagnostic work unrelated to Covered Services, unauthorized repairs, or damage resulting from misuse, negligence, accidents, environmental conditions, improper operation, lack of maintenance, corrosion, contamination, freezing, collision, fire, theft, vandalism, acts of God, or other external causes.

Any service, repair, replacement, adjustment, inspection, or maintenance item not expressly identified as a Covered Service is excluded from coverage under this Agreement.

TRANSFERABILITY

This Agreement may be transferred to a subsequent owner of the Covered Vessel subject to Provider approval, satisfaction of applicable transfer procedures, verification of vessel condition and service status, and payment of any permitted transfer fee. Provider reserves the right to deny transfer requests where documentation, inspection requirements, or eligibility conditions are not satisfied. Transfer rights may vary by state and shall apply only to the extent permitted by applicable law.

LIMITATION OF LIABILITY AND DISCLAIMERS

To the fullest extent permitted by law, Provider's total liability under this Agreement shall not exceed the original purchase price of the Plan. Provider shall not be liable for indirect, incidental, special, punitive, exemplary, or consequential damages, including but not limited to loss of use, loss of time, storage charges, towing expenses, lodging expenses, loss of income, diminution in value, or commercial loss.

This Agreement provides routine maintenance services only and does not guarantee the future performance, condition, reliability, or mechanical operation of the Covered Vessel. Provider does not warrant that Covered Services will prevent breakdowns, failures, or future repairs. This Agreement does not extend, modify, replace, or duplicate any manufacturer warranty or other insurance coverage.

INDEMNIFICATION

To the fullest extent permitted by law, Owner agrees to indemnify, defend, and hold harmless Provider, its affiliates, administrators, officers, directors, employees, contractors, and participating Dealers from and against any claims, damages, liabilities, costs, or expenses arising out of or related to Owner's misuse of the Covered Vessel, unauthorized modifications, negligent operation, failure to maintain the Covered Vessel, or violation of this Agreement, except to the extent directly caused by the gross negligence or willful misconduct of Provider or Dealer.

FORCE MAJEURE

Provider shall not be liable for delays, interruptions, or failure to perform obligations under this Agreement resulting from causes beyond its reasonable control, including but not limited to natural disasters, severe weather, labor disputes, supply shortages, governmental actions, transportation disruptions, epidemics, pandemics, utility failures, or other force majeure events.

DISPUTE RESOLUTION AND ARBITRATION

Except where prohibited by applicable law, any dispute, claim, or controversy arising out of or relating to this Agreement, including the enforceability, applicability, interpretation, or scope of this arbitration provision, shall be resolved exclusively through binding arbitration administered by the American Arbitration Association ("AAA") pursuant to its Consumer Arbitration Rules and the Federal Arbitration Act.

The parties agree that arbitration shall be conducted solely on an individual basis and not as a class action, consolidated action, representative proceeding, or private attorney general action. The arbitrator shall have exclusive authority to determine issues relating to arbitrability, enforceability, formation, and interpretation of this arbitration provision.

Prior to initiating arbitration, the parties agree to make a good faith effort to resolve disputes informally. Either party may pursue qualifying claims in small claims court where jurisdictionally permitted. Arbitration shall occur in the Owner's state of residence unless otherwise required by applicable law.

Owner may opt out of this arbitration provision by delivering written notice to Provider within thirty (30) days of the Effective Date. Any opt-out notice must include the Owner's name, Agreement number, and a clear statement of intent to reject arbitration.

GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the state in which the Agreement was purchased, except to the extent superseded by federal law, including the Federal Arbitration Act.

ASSIGNMENT

Provider may assign or transfer this Agreement, including its rights and obligations, without notice to or consent from Owner. Owner may not assign this Agreement except as expressly permitted under the transfer provisions contained herein or where otherwise required by law.

COMPLIANCE WITH LAW AND SAVINGS CLAUSE

This Agreement is intended to comply with all applicable federal and state laws and regulations governing service contracts and prepaid maintenance agreements. Any provision found to conflict with applicable law shall be automatically modified or interpreted to comply with minimum legal requirements while preserving the original intent of the provision to the maximum extent permitted by law.

Any consumer rights, disclosures, notices, or protections required under applicable state law shall be deemed incorporated into this Agreement whether or not expressly stated herein. Provider may provide additional state-specific disclosures, notices, or addenda at the point of sale, electronically, within the Enrollment Form, or through separate written communication.

CANCELLATION AND REFUND POLICY

You may cancel this Agreement at any time by providing written notice to Provider. If You cancel within thirty (30) days of the Effective Date and no Covered Services have been rendered, You will receive a full refund of the Agreement purchase price. If Covered Services were rendered during the initial thirty (30) day period, Provider may deduct the reasonable value of such services to the extent permitted by applicable law.

After thirty (30) days from the Effective Date, You may cancel this Agreement and receive a pro-rata refund of the unearned portion of the Agreement based upon the time remaining in the applicable term. Provider may deduct the reasonable value of Covered Services rendered where permitted by law. No cancellation fee or penalty shall be charged to You except where expressly authorized by applicable state law.

Whitestone Partners, LLC is the obligor under this Agreement and remains solely responsible for payment of all refunds due under this Agreement. Refunds may be administered directly by Provider or its designated administrator. Dealer compensation arrangements, administrative charges between Provider and Dealer, and other internal business arrangements shall not affect Your cancellation rights or refund entitlement under this Agreement.

All cancellations and refunds shall be administered in accordance with applicable state law, which shall control in the event of any conflict with this Agreement.

STATE-SPECIFIC DISCLOSURES

The following provisions apply only where required by applicable state law and shall supersede any conflicting terms of this Agreement:

CALIFORNIA: This Agreement is intended to comply with applicable California service contract laws, including the Song-Beverly Consumer Warranty Act where applicable. California residents may be entitled to cancellation rights, transfer rights, and fee limitations different from those stated elsewhere in this Agreement. Arbitration provisions apply only to the extent enforceable under California law.

FLORIDA: This Agreement is subject to regulation under applicable Florida service warranty laws. Florida residents may have additional cancellation rights, administrative fee limitations, and protections relating to cancellation and non-renewal. Provider may only cancel this Agreement for non-payment, fraud, material misrepresentation, or other grounds permitted by Florida law.

TEXAS: This Agreement is regulated under the Texas Service Contract Regulatory Act. Texas residents may direct unresolved complaints to the Texas Department of Licensing and Regulation ("TDLR"). Unauthorized services performed without required authorization may not be eligible for reimbursement.

NEW YORK: This Agreement is governed by applicable New York service contract laws. New York residents may have additional cancellation rights, refund protections, and limitations on arbitration enforceability. Provider may cancel this Agreement only for reasons permitted under New York law.

OBLIGOR, ADMINISTRATOR, AND INSURANCE BACKING

Obligor and Administrator:

Whitestone Partners, LLC

P.O. Box 221

Draper, Utah 84020

(385) 505-4256

support@whitestone-partners.com

This Agreement is insured under a service contract reimbursement insurance policy issued by:

Kinsale Insurance Company

P.O. Box 17008

Richmond, Virginia 23226

If Provider fails to perform its obligations or pay a covered claim within sixty (60) days after proof of loss has been filed, You may have the right to file a claim directly with the reimbursement insurer in accordance with applicable law.

ENTIRE AGREEMENT AND ELECTRONIC EXECUTION

This Agreement, together with the Enrollment Form and any applicable state disclosures or addenda, constitutes the entire agreement between the parties and supersedes all prior discussions, representations, or agreements relating to the subject matter herein. This Agreement may be executed electronically and in counterparts, each of which shall be deemed an original and collectively constitute one instrument.